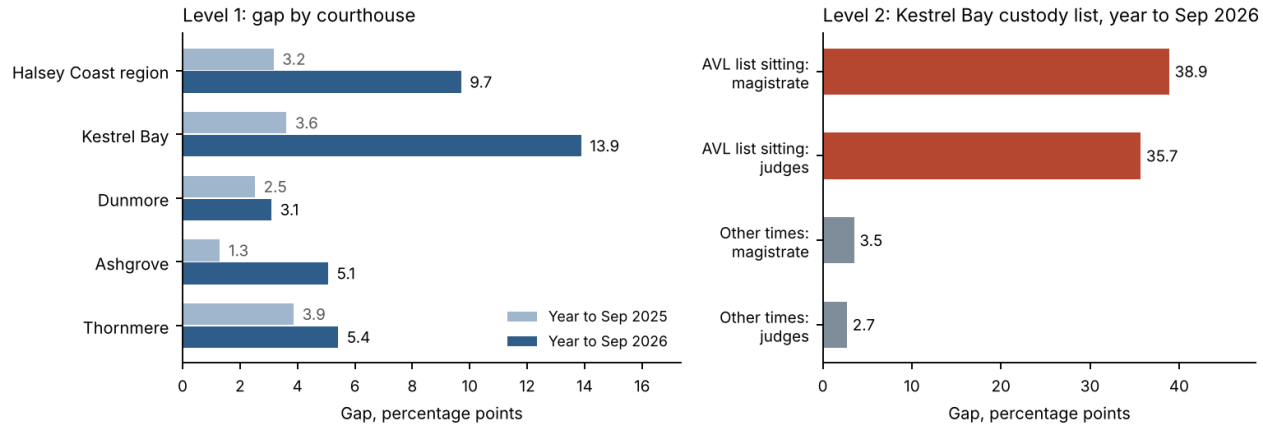
To: Deputy Secretary, Regional Operations
From: Freya Herd, Regional Manager, Criminal Court Operations, Halsey Coast
Date: 3 November 2026
Subject: Budget 2027 bid, custody remand gap at first appearance

The remand gap widened in the Kestrel Bay calls heard while the duty lawyer was on the AVL list

Recommendation

Put the duty lawyer roster forward: a second rostered duty lawyer at Kestrel Bay District Court on every sitting day.

The 2026 widening sits in Kestrel Bay calls made while the AVL remand list sat



Source: CMS appearance extract and court sitting calendar, pulled 2 November 2026; duty lawyer returns, 2024/25 to 2026/27.

What moved

The gap between defendants with no lawyer of record and defendants with one widened from 3.2 points in the year to September 2025 to 9.7 points in the year to September 2026.[1] The widening is at Kestrel Bay (3.6 to 13.9 points); the other three courts moved far less.

Since December 2025 the AVL remand list from the remand centre has sat in courtroom 2 on most Monday to Thursday sittings while the custody list runs in courtroom 1, and the roster keeps one duty lawyer at Kestrel Bay. Custody-list defendants called while the AVL list was sitting show a gap of 38.6 points; those called at other times show 2.9 points, against 3.6 for Kestrel Bay's whole custody list in the year before. The community magistrate who took the custody list in December presides over most of the AVL hours, which is why the gap reads as his at first sight, but his gap at other times is 3.5 points against the judges' 2.7.

Why not the other lines

A judge on the custody list would not change the calls made while the duty lawyer is in the other courtroom. EM bail capacity matters for how long defendants wait once remanded, but EM bail is sought at a later appearance, never at the first. The EM, bail house and reminder lines are costed in remand_gap_drill.xlsx.

[1] The gap as section 3 of the bid instructions defines it: every first appearance from police custody at the four courts, once each on its New Zealand date, remanded in custody whatever else the court ordered; no lawyer of record at that appearance minus a lawyer of record, in percentage points.